Artificial Intelligence Code of Ethics Policy: WVOT-PO1034

Issued by the Chief Information Officer on 10/07/2026.
OPR: WVOT Operations

COMPLIANCE WITH THIS POLICY IS MANDATORY

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https://sites.google.com/wv.gov/othub/policy-governance/ot-policies

Direct questions and change recommendations related to this publication to the assigned Office of Primary Responsibility (OPR), WVOT Operations. The OPR will review the policy annually to ensure continued alignment with current legal, operational, and strategic requirements. Revisions will be undertaken as necessary.

1. PURPOSE

1.1. This policy establishes the basic principles for the responsible and ethical deployment of Artificial Intelligence (AI) tools across state government operations. This policy aligns with preliminary findings of the West Virginia Artificial Intelligence Task Force. The Task Force is mandated by W. Va. Code §5A-6-9 to develop comprehensive policies that address data privacy, algorithmic transparency, and the legal and ethical use of AI.

2. SCOPE

2.1. This policy applies to all departments (including agencies, boards, authorities, and commissions) within the Executive Branch of the West Virginia government that have access to or use state-provided resources.

2.2. An agency may impose additional restrictions on an employee's use of AI in the workplace. However, the agency cannot allow exceptions to this policy unless it receives permission from WVOT.

2.3. This policy does not supersede any federal, state, local, or agency rules, law, policy, or ordinance that are more restrictive and applicable to state offices, or state networks.

3. UTILIZATION OF AI IN STATE GOVERNMENT

3.1. AI plays a pivotal role in advancing the mission of the West Virginia state government by optimizing the delivery of public services. By harnessing AI capabilities, government agencies can operate with greater efficiency and effectiveness, ensuring a seamless experience for citizens.

3.2. At all times, AI applications must comply with state and federal laws; must maintain transparency, fairness, and accountability in government operations; and must protect confidential information from disclosure. Responsible AI usage

ensures equitable access to public services while upholding legal and ethical standards.

3.3. Human in the Loop (HITL) is required to ensure all input and output of AI Applications are accurate and free of errors before being delivered as a final product or part of a delivered service.

4. PRINCIPLES FOR THE CREATION AND IMPLEMENTATION OF AI SYSTEMS

4.1. By integrating AI effectively, the State can empower employees, enhance service delivery, and drive innovation, all while ensuring compliance with regulatory frameworks.

4.2. All AI systems operating on the state network and state devices must adhere to fundamental principles that ensure responsible and ethical use. These systems must be fair, transparent, accountable, and designed with the understanding that they function within broader human systems.

4.3. Considerations for the WVOT network and connected devices:

Every phase of AI creation and implementation must incorporate the following ethical safeguards and basic AI Principles of use (reference US EO 13960 Principles of use in Government). Additionally, these minimal requirements apply to any application, device, or software connected to the WVOT network.

4.3.1. Non-Discrimination: To prevent discrimination, AI platforms must be developed without biases related to race, religion, sex, or political affiliations.

4.3.2. Public Benefit and Human-Centered: AI should be used to enhance and improve the lives of the people it serves, not replace human judgment. The primary goal is to empower the workforce and provide more efficient and effective public services.

4.3.3. Privacy and Consent: User data, sensitive information, and citizen rights must be protected through stringent security measures.

4.3.4. Unintended Consequences: AI outcomes should align with intended goals and avoid negative impacts on users or affected communities.

4.3.5. Lawful and Respectful of Values: AI being used on the WVOT network or WVOT connected devices must comply with the U.S. Constitution and all applicable federal and state laws, rules, and policies.

4.3.6. Accurate, Reliable, and Effective: AI applications must be consistent with the use cases for which they were trained and must be accurate, reliable, and effective in their function.

4.3.7. Safe, Secure, and Resilient: AI systems must be secure against vulnerabilities, adversarial manipulation, and other malicious exploitation to ensure their safety and resilience.

4.3.8. Users must ensure proper data entry into AI systems with accurate data classifications.

4.3.8.1. **Data Security and Input:** Employees must never enter confidential, sensitive, or protected state data, such as Personally Identifiable Information (PII) or Protected Health Information (PHI), into public-facing or otherwise unapproved generative AI systems unless explicitly authorized under WVOT-PO1035. It must be cautioned that even when employees are authorized to use confidential information in generative AI systems, it is imperative that employees take all reasonable and necessary measures to ensure that the confidential information is secured and is not improperly incorporated in public-facing documents.

4.3.9. Understandable: The operations and outcomes of AI applications should be sufficiently understandable to subject matter experts, users, and other relevant parties. This principle is key to building trust and enabling effective oversight.

4.3.10. Responsible and Traceable: Accountability for AI requires a shared responsibility model. While WVOT is responsible for approving AI tools and ensuring baseline technical audit capabilities, individual state agencies are responsible for defining the human roles and oversight processes for their specific use cases. Retention of AI inputs and outputs is governed by WVOT-PO1035, Section 7.

4.4. Continuous Monitoring and Improvement.

The oversight of deployed AI systems is a shared responsibility. WVOT is responsible for continuously monitoring approved enterprise AI platforms for security, compliance, and network integrity. However, individual state agencies are strictly responsible for actively monitoring the outputs, accuracy, and ethical alignment of the final public products of the AI tools they deploy. Regular agency-level review ensures these systems operate as expected, do not develop biases, and continue to serve the public effectively.

4.5. Agency Activities.

4.5.1. Purposeful and Performance-Driven: Agencies should pursue AI applications where the benefits significantly outweigh the risks, and those risks can be properly assessed and managed.

4.5.2. Regularly Monitored: Agencies must regularly test their AI applications against these principles. Mechanisms should be in place to supersede, disengage, or deactivate systems that do not perform as intended.

4.5.3. Transparent: Where practicable and in accordance with applicable laws, agencies must be transparent and should disclose relevant information about the AI systems they deploy and AI-assisted consequential decisions to appropriate stakeholders, including the WV Legislature and its Committees, the Governor, the WVOT, and the public.

4.5.4. Accountable: Agencies are responsible and accountable for implementing and enforcing proper safeguards for the use and function of their AI applications. This includes but is not limited to, monitoring, auditing, proper data classification use, and documenting compliance with these safeguards, including monitoring for accuracy as defined in the Risk Tier Classification Framework (Section 7).

5. AI GOVERNANCE AND OVERSIGHT

5.1. The CIO must approve all new artificial intelligence (AI) initiatives and projects before adoption or deployment. See CIO Review Services for details. This review mechanism ensures that the project or initiative adheres to established ethical and acceptable use policies.

5.1.1. Agencies must use the CIO Review process for the authorization of pilot projects. For all Tier 2 and Tier 3 initiatives, agencies must submit a completed Algorithmic Impact Assessment (AIA) as a prerequisite for CIO Review approval.

5.1.2. Through the CIO Review process, WVOT will maintain an inventory of all AI use cases and verify that all projects satisfy stipulated security and data privacy standards.

6. RELEVANT MATERIALS AND DOCUMENTS

6.1. This policy is consistent with the following federal and state authorities:

6.1.1. Generative Artificial Intelligence Acceptable Use Policy WVOT-PO1035

6.1.2. Approved/Prohibited AI Software

6.1.3. W. Va. Code §5A-6-9. West Virginia Task Force on Artificial Intelligence.

6.1.4. US EO 13960 Principles of use in Government

7. DEFINITIONS / RISK TIER CLASSIFICATION FRAMEWORK

Algorithmic Impact Assessment (AIA): A formal evaluation process used to identify and mitigate the potential risks of an automated system. (Click here to access the form).

Consequential Decision: A decision made or substantially influenced by an AI system that meaningfully affects an individual's rights, access to public services, opportunities, safety, or economic wellbeing. Consequential decisions also include AI-assisted actions that create significant legal, financial, equity, safety, or security risks for the public or the state.

High-Risk AI System: An AI system that significantly affects individuals' rights, opportunities, safety, or economic well-being. This includes any system whose errors or misuse could cause meaningful harm, inequitable outcomes, legal violations, or major risks to business continuity and core operations.

Risk Tiers: The chart below establishes the classification framework.

Risk Tier	Class	Definition & Criteria	Example Use Cases	AIA	Oversight Level	Approval Timeline
Tier 1	Minimal Risk	Internal productivity tools with no impact on citizen rights, safety, or legal status.	Grammar checking, email drafting, meeting summarization, internal scheduling.	Not Required	Standard Acceptable Use Policy (AUP) compliance.	Immediate (No formal approval required if AUP compliant).
Tier 2	Limited Risk	Internal-facing tools that assist in research or programmatic support but do not make final determinations.	Market research, technical code generation, internal data categorization, drafting non-binding policy.	Abbreviated AIA	Agency-level supervisor approval; recorded in AI Use Case Inventory.	Within 5 business days of Abbreviated AIA submission.

Risk Tier	Class	Definition & Criteria	Example Use Cases	AIA	Oversight Level	Approval Timeline
Tier 3	High Risk / Consequential	• Public-Facing Status. • External-facing bots or systems making "Consequential Decisions" affecting life, liberty, money, or rights.	Public-facing chatbots, benefit eligibility (DHHR), fraud detection (DMV), hiring/ personnel, law enforcement tools.	Full AIA Mandatory	CIO Review Committee approval; mandatory quarterly monitoring for bias.	Initial review within 10 business days; formal Committee decision within 15 business days.

8. IMPLEMENTATION GUIDELINES

Compliance: All AI utilization must also adhere to the Generative AI Acceptable Use Policy (WVOT-PO1035) regarding data classification, security protocols, and procurement risk management.

The "External-Facing" Rule: All public-facing AI (e.g., website chatbots) are automatically classified as Tier 3 due to public trust and legal liability risks.

Human-in-the-Loop: Tier 2 and Tier 3 systems require a documented human override process.

Procurement: For Tier 3 systems, the AIA must be completed during the RFP/Purchasing phase.

References: NIST AI Risk Management Framework, Utah SB 149, West Virginia PO1034 & PO1035.